

thread of trust or confidence running between B. and C., and therefore C. is regarded as a stranger (a).

11. **Joint purchasers.** — One of two *joint purchasers* of an estate has been declared a trustee for the other of a proportionate part of the benefit derived by the former from an incumbrance bought up by him at a less value (b).

12. **Tenant for life.** — An opinion has also been expressed by a high authority, that even a *tenant for life* stands in such a confidential relation towards the remainderman that he cannot as against him hold an incumbrance which he has bought up for more than he gave for it (c).

13. **Trustee may not charge for services.** — As regards trustees, in the strict sense of the word, the general rule deprives them of any right to receive remuneration for their personal labour and services.¹

(a) *Davis v. Barrett*, 14 Beav. 542. The observations of M. R. are general, but he probably meant no more than this.

(b) *Carter v. Horne*, 1 Eq. Ca. Ab. 7.

(c) *Hill v. Browne*, Drur. 433.

¹ *Compensation of trustees.* — In most of the United States trustees are entitled to a reasonable compensation, but not to any collateral profit, as by an appointment as a receiver, or services as broker, agent, banker, attorney, or auctioneer, although they may hire such services, if needed, at the expense of the estate. *Binsse v. Paige*, 1 Keyes, 87; *Morgan v. Hannas*, 49 N. Y. 667; *Jenkins v. Fickling*, 4 Des. 360; *Mayer v. Galluchat*, 6 Rich. Eq. 2. If the trust states the compensation it cannot be increased; *College v. Willingham*, 13 Rich. Eq. 195; *Biscoe v. State*, 23 Ark. 592; likewise if amount has been agreed on; *Jackson v. Jackson*, 3 N. J. Eq. 113. In case of the death of the *cestui que trust*, see *Parker v. Ames*, 121 Mass. 220; of trustee, see *Widener v. Fay*, 51 Md. 273; *Savage v. Sherman*, 24 Hun. 307. Compensation to an unfaithful and negligent trustee may be properly refused; *Gordon v. Matthews*, 30 Md. 235; *Hermstead's App.* 60 Pa. St. 423; *McKnight v. Walsh*, 24 N. J. Eq. 498; *Norris's App.* 71 Pa. St. 106; *Warbass v. Armstrong*, 10 N. J. Eq. 263; *Stearly's App.* 38 Pa. St. 525; *Lathrop v. Smalley*, 23 N. J. Eq. 192; *Cook v. Lowry*, 95 N. Y. 103; *Nagle's Est.* 12 Phila. 25; *Blauvelt v. Ackerman*, 23 N. J. Eq. 495. Compensation may be received for services both as executor and as trustee; *Laytin v. Davidson*, 95 N. Y. 263; *Phoenix v. Livingston*, 101 N. Y. 451; *Pitney v. Everson*, 42 N. J. Eq. 361; *Hall v. Campbell*, 1 Dema. (N. Y.) 415; unless the compensation is fixed by will; *Brownson v. Roberts*, 5 Redf. 576. In New York where the statute of 1863 made special provision where the value of the estate exceeds \$100,000 the income cannot be added to increase the amount; *Meeker v. Crawford*, 5 Redf. 450; *Slosson v. Naylor*, 2 Dema. 257. In addition to the commission on the principal, the trustee is entitled to a yearly commission on the income in accordance with his accounting; *Hancox v. Meeker*, 95 N. Y. 528; *Re Meserole*, 36 Hun, 298; *Frame v. Willets*, 4 Dema. 368; but see *Brush v. Smith*, 1